



Affine Analytics

Green Card Application

Policy Guidelines

Affine Inc.

2018 156th Avenue, N.E, Building F, Suite 306, Bellevue, Washington, 98007

Tel: +91-80-6569-0996 | Web: www.affine.ai | Mail: info@affine.ai

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Affine has come up with the following policy/guidelines that need to be followed in regard to the Green Card Application for an employee:

1. Intent to initiate Green Card Application: The individual's case should meet/fulfill the following criteria:
 - i. Current/Pending balance on either H/L visa max out (i.e. overall validity) is 3 years
 - ii. The individual should have completed at least 1 year with Affine. While considering the employee's tenure as an eligibility criteria - The individual's tenure in Affine Inc. (US Organization) will be considered, and not his/her total tenure at Affine overall.
 - iii. Individual should have received a rating of 4 and above in the last 2 appraisal cycles to be eligible for GC Application
 - iv. This policy will be applicable only to all those who are FTE's and are at a minimum role of a Consultant
 - v. A clause of a 3-year retention policy will be included as a part of the Terms & Conditions (Amendment to the individual's initial contract with Affine). This will begin from the start date of the filing process for an individual's GC Application, if at any point in time, the individual decides to terminate his/her employment with Affine prior to the 3-year completion – the individual will be liable to liquidated damages which would be pro-rated from the start date of the application for until 3 years. The cost for this will be shared at a later period – prior to case initiation.
2. In the event that the individual does not meet the above criteria, however, still wishes to proceed with the filing of a GC Application. He/she can do so by investing the required amount to initiate the process. Again, the fee for this will be shared based on the stage/process at that point in time. On reaching a stage where the individual falls under the criteria set above (i.e., 3 years pending on current visa/4 and above rating on appraisals) – Affine will reimburse the amount invested by the Individual which will then be converted to a pro-rated time-bound clause for 24 months.
 - i. Upon receipt of the invoice, \$1500 will be deducted per month from the individual's salary until the full GC cost is recovered
 - ii. In the event that the individual leaves Affine:
 - a. On Pending/Approved GC: prior to the complete recovery of the GC cost, the pending amount will be recovered from the individual as part of the exit process
3. Affine reserves the right to withhold sharing of any legal documentation as deemed necessary.

Dependents:

- The dependent(s) application will be simultaneously filed along with the main applicant's visa filing (I485/EAD/AP).
- The cost incurred for the dependent application(s) will be borne by the main applicant (employee)

Disclaimer:

The final decision on the above matters will at all times remain at Management's discretion. The management of the company will have the authority to make amendments deletion/addition/improvisation, etc.) to this policy.

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Liquidated Damages:**Affine US:**

Liquidated Damages (For Visa cases only): In the event that you decide to leave your employment with Affine post-initiation/extension of your visa and documentation submitted to the lawyers for the purpose of visa through no fault of Affine, so that Affine may recover bona fide liquidated damages. In such a scenario, you agree to pay Affine the fees incurred on your visa application(s) on actuals, which will be reduced monthly on a prorated basis from the date of approval for a period of 24 months or up to \$5,000.00, whichever is lower.

Affine India:

Liquidated Damages (For Visa cases only): In the event that you decide to leave your employment with Affine post-initiation/extension of your visa and documentation submitted to the lawyers for the purpose of visa through no fault of Affine, so that Affine may recover bona fide liquidated damages. In such a scenario, you agree to pay Affine the fees incurred on your visa application(s) on actuals, which will be reduced monthly on a prorated basis from the date of joining Affine US for a period of 18 months or up to \$5,000.00, whichever is lower.

Liquidated Damages/ Visa Cost: In the event that you decide to leave your employment with Affine:

- **From the time we initiate your visa process until your visa is approved/stamped:**
 - Affine will recover 100% of the visa cost
 - In case your visa is denied, the amendment to the employment agreement will stand void
- **From the date of joining Affine Inc on H/L visa:**
 - The recovery of the visa cost will be pro-rated from the first date of joining Affine US until 18 months (India Transfer) and from the date of approval until 24 months (Already present in the US)
 - On completion of 18 months/24 months from the date of joining Affine US/approval, you will not fall under the preview of liquidated damages
 - In-case Affine is unable to relocate you to the US within 6 months from the date of stamping, the amendment to the employment agreement will stand void

Denial of Travel: Upon the application of the employee being approved, Denial of travel (other than any uncontrollable factors attributed to reasons such as medical or emergency) will be considered as willful neglect of duty. In such cases, the company will be within its right to terminate employment with immediate effect & require the Employee to repay the full (100%) visa cost

Dependent visa (Liquidated Damages):

- If the dependent is employed with Affine, such cost will be recovered from the dependent directly. In the event that he/she decides to leave employment with Affine (for no fault of the company), such cost will directly be recovered from the dependent. The recovery of the visa cost will be pro-rated from the date of joining Affine US for a duration of 18 Months (India Transfer) or 24 months (Already present in the US)
- If the dependent is not employed with Affine the visa cost will be linked to the main applicant and the recovery duration will be as stated above

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H-1B withdrawal:

If an individual decides to withdraw the H-1B Petition on the basis of an RFE:

- Immigration Team has discussions with the individual and will try to understand the reasons for withdrawal/works with the individual to get the RFE Response Filed
- In case the employee confirms that he/she wants to withdraw the case. The liquidated damages would be converted to a time-bound clause. The individual instead of returning the amount spent by Affine on their visa would have the option to withdraw and spend 18 months in the organization from the date of acceptance in lieu of the damages. In case, the individual decides to leave the organization, they would be bound to re-pay the damages on a pro-rated basis from the date of acceptance and this would be valid for 18 months
- If an individual decides to pull back his case at an RFE Level, due to no fault of the company. Affine will not re-file the individual's petition in the next CAP Season

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The final decision on the above matters will at all times remain at management's discretion. The management of the company will have the authority to make amendments (deletion/addition/improvisation, etc.) to this policy.

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General Visa Guidelines – For Internal Use

- Visa Initiation request – received from Senior Managers (Approval from Ashish – Mandatory)
- Once confirmed, Immigration Team to take this forward
 - Initiate the case on the portal
 - Coordinate with the lawyers, explain priority and provide case background
 - Complete Case Assessment
- Once the welcome email is sent out from the Lawyers:
 - ✓ **Individual:** To complete and provide all the required personal information and specific job duties
 - ✓ **Manager:** To confirm on project-level details and provide: SOW, Worksite location, and a client letter. If it is an offshore case, the offshore manager needs to coordinate with the onsite account manager/client and get the required information
 - ✓ **Immigrations Team:** To work on Org Chart, Position, evaluate the type of visa, confirm company-level information, work with Finance on documents, provide JD's of folks doing a similar job in the company and all other major information (as needed) including finalizing the salary with the HR Team
- All the information is submitted 100% complete to avoid any extra charges
- Individual: A lawyer call is scheduled if needed (depending on the case)
- Draft received for review – Immigration reviews the visa and personal aspects. Managers and Individuals to review the technical/analytical aspects
- Final petition is signed off by the immigrations team, respective manager and individual which is then filed